



CHAPTER cxxxii.

An Act to confirm a Provisional Order made by the Board of Trade under the Railway and Canal Traffic Act 1888 containing the Schedule of Maximum Rates and Charges applicable to the Regent's Canal.

A.D. 1904.

[22nd July 1904.]

WHEREAS under the Railway and Canal Traffic Act 1888 the Board of Trade embodied in a Provisional Order the schedule of maximum rates and charges which in the opinion of the Board of Trade ought to be adopted by the Regent's Canal and Dock Company in respect of the Regent's Canal :

51 & 52 Vict.
c. 25.

And whereas it is expedient that the Provisional Order as set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Canal Rates and Charges (Regent's Canal) Order Confirmation Act 1904.

Short title.

2. The Order as set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions of the said Order in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect.

Confirmation
of Order in
schedule.

A.D. 1904.

SCHEDULE.

THE REGENT'S CANAL.

Order of the Board of Trade under the Railway and Canal Traffic Act 1888 embodying the authorised Schedule of Maximum Rates and Charges applicable to the Regent's Canal.

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| Short title. | 1. This Order may be cited as the Canal Rates and Charges (Regent's Canal) Order 1904. |
| Interpretation. | 2. This Order is to be read and construed subject in all respects to the provisions of the Railway and Canal Traffic Acts 1873 to 1888 and of any other Acts or parts of Acts incorporated therewith. |
| Schedule of maximum rates and charges. | 3. From and after the commencement of this Order the maximum rates and charges which the Regent's Canal and Dock Company shall be entitled to charge and make in respect of merchandise traffic on the canal of the Company shall be the rates and charges specified in the said schedule and shall be subject to the regulations and provisions set forth in the said schedule. |

SCHEDULE OF MAXIMUM RATES AND CHARGES APPLICABLE TO THE REGENT'S CANAL.

I.—*Maximum Rates and Charges.*

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| Division of schedule. | 1. Table A in this schedule is divided into three parts and shall be deemed part of this schedule. |
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Part I. of the table contains the maximum rates and station and service terminals which the Company may charge in respect of the merchandise comprised in the several classes of merchandise specified in the classification when conveyed by the Company over the canal.

Part II. of the table contains the exceptional charges which the Company may charge in respect of the articles animals goods and things specified in that Part and the circumstances in which the exceptional charges may be made.

Part III. of the table contains the rates and charges which the Company may make for the conveyance by them of small parcels with the provisions and regulations which are to apply to such parcels.

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| Maximum conveyance rates. | 2. The maximum rates are the maximum rates which the Company may charge for the conveyance by them of merchandise over the canal and include the provision of boats and towage or other motive power by the Company and every other expense incidental to such conveyance not otherwise in this |
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schedule provided for Provided that it shall not be obligatory on the A.D. 1904.
 Company to convey over the canal any merchandise comprised in Class A of
 the classification or any of the following articles in Class B viz. ammoniacal
 liquor pitch (coal tar during the months of June July August and September)
 compost for manure creosote coal tar gas tar gas water draff or brewers' and
 distillers' grains gravel (tarred for paving) lime in bulk manures in bulk salt
 in bulk sugar scum for manure or any article or thing which in weight or
 bulk may exceed the lifting power of the Company's cranes or the carrying
 capacity of their boats or which may be liable to injure or damage the boats
 of the Company or other goods carried therein or which may be dangerous
 or explosive.

3. The maximum station terminals are the maximum charges which the Maximum
 Company may make to a trader for the use of the accommodation exclusive station
 of coal or other drops provided and for the duties undertaken by the terminals.
 Company for which no other provision is made in this schedule at the
 terminal station for or in dealing with merchandise as carriers thereof before
 or after conveyance.

4. The maximum service terminals are the maximum charges which the Maximum
 Company may make to a trader for the following services when rendered to service
 or for a trader at a terminal station that is to say loading unloading covering terminals.
 and uncovering merchandise which charges shall in respect of each service
 be deemed to include all charges for the provision by the Company of
 labour machinery plant stores and sheets Provided that where merchandise
 conveyed in a separate boat is loaded or unloaded elsewhere than in a shed
 or building of the Company the Company may not charge to a trader any
 service terminal for the performance by the Company of any of the said
 services if the trader has requested the Company to allow him to perform the
 service for himself and the Company have unreasonably refused to allow him
 to do so Any dispute between a trader and the Company in reference to any
 service terminal charged to a trader who is not allowed by the Company to
 perform for himself the service shall be determined by the Board of Trade.

5. The Company may charge for the services hereunder mentioned or Special
 any of them when rendered to a trader or other person at his request charges.
 or for his convenience a reasonable sum in addition to all other rates tolls
 and charges Any difference arising under this section shall be determined
 by an arbitrator to be appointed by the Board of Trade at the instance of
 either party Provided that where before any such service is rendered to
 a trader or other person he has given notice in writing to the Company that
 he does not require it the service shall not be deemed to have been rendered
 at his request or for his convenience:

- (i) The collection or delivery of merchandise outside the terminal
 station;
- (ii) Weighing merchandise;

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- (iii) The detention of the Company's boats at any place or the use or occupation of any landing place or accommodation (not being water space) belonging to the Company at a terminal station before or after conveyance beyond such period as shall be reasonably necessary for enabling the Company to deal with the merchandise as carriers thereof or the consignor or consignee to give or take delivery thereof or in cases in which the merchandise conveyed by the Company is consigned to an address other than the terminal station beyond a reasonable period from the time when notice has been delivered at such address that the merchandise has arrived at the terminal station for delivery and services rendered by the Company in connexion with such use or occupation ;
- (iv) Loading or unloading covering or uncovering merchandise comprised in Class A Class B or Class C of the classification when conveyed by the Company over the canal or merchandise comprised in any other class of the classification when so conveyed and the services are rendered at or in connexion with places apart from the Company's terminal stations ;
- (v) The use of coal or other drops ;
- (vi) The use of cranes and the machinery plant and power for working the cranes and provision of labour in connection therewith.

II.—*Provisions as to Fixing Rates and Charges.*

Minimum
 rates for short
 distances.

6. Where merchandise is conveyed by the Company on the canal for an entire distance which does not exceed in the case of merchandise in respect of which a station terminal is chargeable at each end of the transit three miles or in the case of merchandise in respect of which a station terminal is chargeable at one end of the transit four and a half miles or in the case of merchandise in respect of which no station terminal is chargeable six miles the Company may make the charges for conveyance authorised by this schedule as for three miles four and a half miles and six miles respectively Provided that where merchandise is conveyed partly on the canal and partly on the canal of any other company the canal and the canal of such other company shall for the purpose of reckoning such short distance be considered as one canal.

Rate for mini-
 um boatload.

7. For any quantity of merchandise less than a boatload which the Company either receive or deliver on or at places apart from the Company's terminal stations or which from the circumstances in which the merchandise is tendered or from the nature of the merchandise the Company are obliged or required to convey separately the Company may charge as for a reasonable minimum load having regard to the nature of the merchandise Any difference arising under this section shall be determined by an arbitrator to be appointed by the Board of Trade.

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8. The Company may charge for a fraction of a ton according to the number of quarters of a ton in that fraction and a fraction of a quarter of a ton may be charged for as a quarter of a ton. A.D. 1904.
Fraction of a ton.

9. For the fraction of a mile the Company may charge according to the number of quarters of a mile in that fraction and a fraction of a quarter of a mile may be charged as a quarter of a mile. Fraction of a mile.

10. For the fraction of a penny in the gross amount of rates and charges for any consignment for the entire distance conveyed the Company may charge a penny. Fraction of a penny.

11. Weight (except as to stone when charged by measurement and except as hereinafter provided as to timber) shall be determined according to the imperial avoirdupois weight which may be ascertained by actual weighing or by the tonnage gauges or indices of the boat containing the merchandise but in case of dispute either the Company or a trader may insist upon an actual weighing the cost of which and of the necessary unloading and reloading shall be borne by the party in error. Weight.

12. All stone when conveyed by the Company shall be charged by weight when the weight can be conveniently ascertained. When the weight of stone in blocks cannot be conveniently ascertained fourteen cubic feet of stone in blocks may be charged for as one ton and smaller quantities may be charged for in the like proportion. Weight of stone.

13. Forty cubic feet of oak mahogany teak beech greenheart ash hickory ironwood baywood or other heavy timber and fifty cubic feet of poplar larch fir elm birch lancewood walnut or other light timber other than deals battens and boards and sixty-six cubic feet of deals battens and boards shall be charged for as one ton and smaller quantities shall be charged for in the like proportion. The cubic contents of timber (other than round timber) shall be ascertained by the mode of measurement in use for the time being and the cubic contents of round timber shall be ascertained by quarter girth and the divisor of one hundred and forty-four (measurement being taken by tape over bark). Weight of timber.

14. The Company may demand that any trader shall forward a declaration to the Company setting forth the true description and dimensions of timber conveyed by or for him and the cubic contents of the same. In the event of doubt as to the correctness of such declaration the Company may insist upon measuring the timber the cost of which measuring and of the necessary unloading and reloading shall be borne by the party in error or the Company may demand either from the consignor or consignee of such timber a copy of the invoice of the timber and a statutory declaration of the correctness of the same. Upon failure or refusal after reasonable notice to furnish any of aforesaid documents the Company shall have power to charge either the consignor or consignee according to the avoirdupois weight of the timber to be ascertained in the same manner as the weight of other merchandise. Provision as to declaration.

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Aggregate quantities.

Station terminal not to be charged for exchange of traffic.

15. Articles of one description sent in large aggregate quantities although made up of separate parcels such as bags of sugar bags of coffee and the like shall not be deemed to be small parcels.

16. No station terminal shall be charged by the Company in respect of merchandise exchanged with handed over to or received from any other canal company for further conveyance by canal at the terminal station at which it is so exchanged handed over or received.

III.—*Miscellaneous.*

Rates for consignments of under two tons.

17. When merchandise specified in Classes A, B or C of the classification is consigned in quantities of less than two tons the Company may charge for such consignment if the merchandise is specified in Class A or B the conveyance rates applicable to Class C or if the merchandise is specified in Class C the conveyance rates applicable to Class I. Provided that the Company shall not charge for any such consignment conveyance rates greater than the conveyance rates for two tons for the class in which such merchandise is specified.

Classification of unenumerated articles.

18. In respect of any merchandise or article of any description which is not specified in the classification the Company may unless and until such merchandise or article is duly added to this classification and schedule pursuant to Subsection 11 of Section 24 of the Railway and Canal Traffic Act 1888 make the charges which are by this schedule authorised in respect of merchandise and things in Class B.

Rates for returned empties.

19. In respect of returned empties conveyed by the Company over the canal from the same place and consignee to which and to whom they were carried full to the same station and consignor from which and from whom they were carried full the Company may charge the following rates for conveyance inclusive of station and service terminals viz. :—

For any distance not exceeding twenty-five miles threepence per hundredweight ;

The minimum weight to be fifty-six pounds with a minimum charge of threepence :

Provided that—

(i) Returned empty sacks and bags in bundles shall not be charged more than half the above rates with a minimum charge of fourpence ;

(ii) Returned empty carboys or crates (other than glass manufacturers' crates and crates taken to pieces and so packed) may be charged double the above rates ;

(iii) The minimum charge for returned empty fish packages shall be fourpence ;

(iv) Returned ale and porter casks shall not be charged more than the rate per ton when conveyed full when that rate is less than the above rates :

The weight to be calculated as follows :—

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Ale pin (half a firkin) fourteen pounds ;
Firkin one quarter ;
Twelve gallon cask one quarter fourteen pounds ;
Kilderkin two quarters ;
Barrel and half hogshead three quarters ;
Hogshead one hundredweight ;
Butt one and a half hundredweight :

Minimum charge fourpence for a single consignment.

20. Any canal company other than the Company conveying merchandise over the canal or performing any of the services for which rates or charges are authorised by this schedule shall be entitled to charge and make the same rates and charges as the Company are by this schedule authorised to charge and make. Rates for other companies using the canal.

21. The Board of Trade Arbitrations &c. Act 1874 shall so far as applicable apply to every determination of a difference or question by arbitration under the provisions herein contained. Arbitration.

22. In this schedule unless the context otherwise requires—

Definitions.

The term "the Company" means the Regent's Canal and Dock Company ;

The term "the canal" means all canals and navigations belonging to the Company or for the use of which the Company were at the date of the Act confirming this Order coming into operation entitled to charge tolls ;

The term "merchandise" includes all goods and things comprised in the classification ;

The term "the classification" means the classification of goods annexed to the schedule to the Canal Tolls and Charges No. 5 (*Regent's Canal*) Order 1894 ;

The term "trader" means any person sending or receiving or desiring to send merchandise over the canal by the Company's boats ;

The term "terminal station" means a place upon or in connection with the canal at which the Company have provided or provide structural accommodation for receiving delivering loading or unloading merchandise before or after its conveyance on the canal but does not include any dock or shipping place ;

The term "boat" includes all vessels barges keels sloops steam vessels compartment boats and other craft of every description however propelled or moved using the canal.

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TABLE A.

PART I.

MAXIMUM RATES AND CHARGES.

In respect of Merchandise comprised in the under-mentioned Classes.	Maximum Rates for Conveyance.		Maximum Station Terminals at each end. Per Ton.	Maximum Service Terminals.			
	For the first Four Miles or any part of such Distance.	For the remainder of the Distance.		Loading.	Unloading.	Covering.	Uncovering.
	Per Ton per Mile.	Per Ton per Mile.		Per Ton.	Per Ton.	Per Ton.	Per Ton.
	s. d.	s. d.	s. d.	s. d.	s. d.	s. d.	s. d.
A	0 4	0 1·5	0 3	—	—	—	—
B	0 4	0 1·5	0 3	—	—	—	—
C	0 6	0 1·5	0 6	—	—	—	—
1	0 7	0 1·5	0 9	0 6	0 6	0 1·5	0 1·5
2	0 8	0 1·5	0 9	0 8	0 8	0 2	0 2
3	0 9	0 1·5	1 0	1 0	1 0	0 2	0 2
4	0 11	0 1·5	1 0	1 4	1 4	0 3	0 3
5	1 2	0 1·5	1 0	1 8	1 8	0 4	0 4

PART II.

EXCEPTIONAL CHARGES.

Description.	Charge.
For articles of unusual length bulk or weight or of exceptional bulk in proportion to weight - - - - -	Such reasonable sum as the Company may think fit in each case to be determined in the event of a dispute by an Arbitrator to be appointed by the Board of Trade.
For articles requiring an exceptional boat or more than one boat - - - - -	
For cattle live stock or animals - - - - -	
For dangerous or explosive goods - - - - -	
For any accommodation or services provided or rendered by the Company within the scope of their undertaking by the desire of any person and in respect of which no provision is made by this Schedule - - - - -	

PART III.

CARRIAGE OF SMALL PARCELS.

- For the carriage of small parcels not exceeding in weight three hundredweight the Company may charge in addition to the maximum rates for conveyance and the maximum station and service terminals authorised by this schedule a sum not exceeding fivepence per parcel.
- A small parcel under this part of the schedule may consist of one consignment of two or more packages of merchandise comprised in the same class of the classification of not less than fourteen pounds each in weight.

3. For a small parcel of less than twenty-eight pounds in weight the Company may charge as for a parcel of twenty-eight pounds in weight. A.D. 1904.
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4. For a fraction of fourteen pounds in weight the Company may charge as for fourteen pounds in weight.

5. Any small parcel (other than a parcel of mixed groceries) containing articles of different classes of classification shall be chargeable with the maximum tonnage charge applicable to the highest of the classes.

6. If the consignor of a small parcel declines on demand by the Company to declare to the Company the nature of the contents of the small parcel before or at the time when the same is delivered to the Company for conveyance the Company may charge for the parcel as if it was wholly composed of articles comprised in Class 5 of the classification.

7. Nothing in this part of the schedule shall apply to returned empties.

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